

26SMCV01314 26SMCV01314

County: los-angeles

Division: Civil Law and Motion

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Case Number: 26SMCV01314 Hearing Date: August 31, 2026 Dept: M

CASE NAME: Handal, v. L.A. Wellness Center

CASE NO.: 26SMCV01314

MOTION: Motion to Strike the First Amended Complaint

HEARING DATE: 8/31/2026

LEGAL STANDARD

Any party, within the time allowed to respond to a pleading may serve and file a notice of motion to strike the whole or any part thereof. (CCP § 435(b)(1); Cal. Rules of Court, Rule 3.1322(b).) The court may, upon a motion or at any time in its discretion and upon terms it deems proper: (1) strike out any irrelevant, false, or improper matter inserted in any pleading; or (2) strike out all or any part of any pleading not drawn or filed in conformity with the laws of California, a court rule, or an order of the court. (CCP §§ 436(a)-(b); *Stafford v. Shultz* (1954) 42 Cal.2d 767, 782 [“Matter in a pleading which is not essential to the claim is surplusage; probative facts are surplusage and may be stricken out or disregarded”].)

“Liberality in permitting amendment is the rule, if a fair opportunity to correct any defect has not been given.” (*Angie M. v. Superior Court* (1995) 37 Cal.App.4th 1217, 1227.) It is an abuse of discretion for the court to deny leave to amend where there is any reasonable possibility that plaintiff can state a good cause of action. (*Goodman v. Kennedy* (1976) 18 Cal.3d 335, 349.) The burden is

on plaintiff to show in what manner plaintiff can amend the complaint, and how that amendment will change the legal effect of the pleading. (Id.)

ANALYSIS

Defendant Los Angeles Wellness Center moves to strike Plaintiff Jay B. Handal's First Amended Complaint ("FAC"). Defendant argues that Plaintiff filed the FAC with the Court on July 13, 2026, without first serving Defendants, despite Defendants having already appeared in the action through counsel. Defendant argues that service of an amended pleading upon all appearing parties before seeking relief based upon that pleading is improper.

Defendant fails to set forth grounds for striking the FAC. The August 4, 2026, Proof of Service shows electronic service of the FAC on July 15, 2026. Defendant cites no authority that such service was improper or could support a motion to strike. The cited CCP sections do not state that an amended complaint needs to be served prior to filing. (See CCP § 1010.6 [documents may be served electronically]; 1011 [service may be by delivery to an attorney]; 1013 [re: service via mail]; 1013a [re: affidavits for proof of service via mail].) Defendant cites an ex parte application to shorten Defendant's time to respond to the FAC to ten days. At worst, the failure to serve the FAC by that time might be grounds to deny or strike that motion. Such relief would be moot, however, since the Court already denied that ex parte. Striking the FAC is unwarranted.

Next, Defendant argues that Plaintiff's counsel violated the California Rules of Professional Conduct ("CRPC") by communicating directly with Defendant while serving the FAC. This alleged violation is not apparent from the pleadings or court records. Even assuming Plaintiff's counsel violated the CRPC, Defendant fails to cite any authority that CRPC violations would support striking a pleading.

Accordingly, the motion to strike is DENIED.